



CHAPTER ccxxxvi.

An Act to enable the mayor aldermen and burgesses of the borough of Salford to construct an additional tramway and to make street improvements to confirm an agreement with the lord mayor aldermen and citizens of the city of Manchester to provide for transfer to the Corporation of certain powers of electric lighting and to enable the Corporation to raise additional moneys by mortgage and by the creation and issue of stock and for other purposes. A.D. 1903.

[14th August 1903.]

WHEREAS the county borough of Salford (herein-after called "the borough") is subject to the Acts relating to municipal corporations and is under the government of the mayor aldermen and burgesses of the borough (herein-after called "the Corporation") acting by the council :

And whereas the several local Acts and Provisional Orders mentioned in the First Schedule to this Act or parts thereof are in force within the borough which Acts and Orders are in this Act referred to collectively as "the former Acts" and each of them separately as an Act or Order of the year in which the same was passed or made :

And whereas under the powers of the Act of 1875 the Order of 1885 and the Acts of 1897 1899 and 1902 the Corporation have constructed or have power to construct various tramways in the borough and are also lessees of tramways in adjacent districts all which tramways are or when constructed will be worked by them under the powers of the said Acts of 1899 and 1902 :

And whereas it is expedient that the Corporation should be authorised to construct and work the additional tramway in the borough as herein-after described :

A.D. 1903.
—

And whereas it is expedient that the agreement of which a copy is set out in the Second Schedule to this Act between the lord mayor aldermen and citizens of the city of Manchester and the Corporation should be confirmed :

And whereas it is expedient that the Corporation be authorised to construct the new street street improvements and works connected therewith herein-after described and in this Act referred to as " street works " :

And whereas the urban district of Prestwich adjoins the borough and the urban district of Whitefield adjoins the district of Prestwich and the councils of those urban districts are respectively authorised by the Prestwich Electric Lighting Order 1900 and the Whitefield Electric Lighting Order 1900 to supply electricity for public and private purposes within their respective districts :

And whereas under the Salford Electric Lighting Order 1890 confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1890 the Corporation have erected a large generating station for the production of electrical energy and the supply thereof within the borough and have under the powers of the said Order already laid distributing mains from the said generating station to the boundary between the borough and the district of Prestwich :

And whereas electric energy for the purpose of lighting the said districts can be more economically and efficiently supplied by the Corporation from their said generating station than by means of separate generating stations and works erected by the said councils of the said two districts :

And whereas at the request of the councils of those districts the Corporation have agreed to take over and exercise the powers conferred upon those councils respectively by the said Orders and it is expedient that such arrangement should be authorised and that the powers of this Act in relation thereto should be conferred upon the Corporation :

And whereas certain lands in the borough known as the New Barns Estate adjoining the docks railways and property of the Manchester Ship Canal Company are in course of being laid out for the erection of warehouses and premises intended to be used mainly for commercial purposes :

And whereas it is expedient to authorise and provide for the laying and maintenance of rails along or across streets laid out on the said estate so as to admit of the conveyance of trucks and railway vehicles along or across the same between the railways and

docks of the Manchester Ship Canal Company and the warehouses and premises on the said estate but subject to the provisions and conditions herein-after set forth : A.D. 1903.
—

And whereas it is expedient that further borrowing powers for the purposes of this Act be conferred upon the Corporation :

And whereas by the Act of 1893 the Corporation were authorised to exercise their statutory borrowing powers by the creation and issue of Corporation redeemable stock : 56 & 57 Vict.
c. xxxi.

And whereas it is expedient that the other provisions in this Act should be made :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purchase of land and for the execution of the various works by this Act authorised and such estimates are as follows :—

For the construction of tramways eighteen thousand pounds ;
For street works purposes forty-one thousand pounds :

And whereas the several works included in such estimates are permanent works within the meaning of the two hundred and thirty-fourth section of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the council at a meeting held on the third day of December one thousand nine hundred and two after ten clear days notice by public advertisement of such meeting and of the purpose thereof in *The Reporter* a newspaper published and circulating in the borough (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate of the borough :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the fourth day of February one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the

A.D. 1903. Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines situations and levels of the tramway and street works by this Act authorised and plans showing the lands which may be acquired under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerk of the peace for the county of Lancaster and are in this Act referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title. **1.** This Act may be cited as the Salford Corporation Act 1903.

Act divided into parts.

2. This Act is divided into parts as follows :—

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Street Works.

Part IV.—General Provisions common to Tramway and Street Works.

Part V.—Lands.

Part VI.—Finance.

Part VII.—Miscellaneous.

Incorporation of general Acts.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act :

Provided that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-

General The expression "telegraphic line" in this Act has the same meaning as in the Telegraph Act 1878. A.D. 1903.

4. In this Act unless the subject or context otherwise require— Interpretation.

Terms to which meanings are assigned by enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act the same respective meanings;

"The borough" means the county borough of Salford;

"The Corporation" means the mayor aldermen and burgesses of the borough;

"The council" means the town council of the borough;

"The town clerk" means the town clerk of the borough;

"The borough fund" and "the borough rate" respectively mean the borough fund and the borough rate of the borough;

"The district fund" and "the general district rate" respectively mean the district fund and the general district rate of the borough;

"The tramway" means the tramway by this Act authorised;

"Tramway revenue" means all revenue of the tramway undertaking;

"The New Barns Estate" means the land shown as edged red upon a plan signed in duplicate by Llewelyn Caradoc Evans and Joshua Bury and also signed by the Right Honourable the Earl of Morley the Chairman of Committees of the House of Lords.

PART II.

TRAMWAYS.

5. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain partly within the city of Manchester and partly within the borough the tramway herein-after described in the lines and situations and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all necessary and proper rails plates sleepers channels passages and tubes for ropes cables wires and electric lines junctions turntables turnouts crossings passing-places stables carriage-houses engine and boiler houses sheds buildings engines dynamos works and conveniences connected therewith respectively. Power to make tramway.

A.D. 1903.

The tramway herein-before referred to is a tramway (described on the deposited plans as Tramway No. 1 double line 7 furlongs 6·4 chains or thereabouts in length) commencing in Middleton Road in the parish of Crumpsall in the city of Manchester by a junction with Tramway No. 17 authorised by the Manchester Corporation Tramways Act 1900 at a point about 1 chain northward of the junction of Middleton Road with Bury Old Road and terminating in the parish of Broughton in the borough in Great Cheetham Street East by a junction with Tramway No. 1 authorised by the Act of 1902 at a point thereon opposite the junction of Tully Street with Great Cheetham Street East.

The tramway herein-before referred to and authorised by this Act shall be of the gauge of 4 feet 8½ inches. The Corporation shall not run thereon carriages or trucks adapted for use on railways.

Tramway to form part of tramway undertaking for all purposes.

6. The tramway shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of Part II. (Tramways) of the Act of 1899 except section 32 (Lands for generating stations) so far as they are applicable and are not inconsistent with the provisions of this Act shall extend and apply mutatis mutandis to and in relation to the tramway and to the Corporation in relation thereto as if the tramway had been constructed under the powers of that Act.

Certain portions of tramway only to be constructed in certain events.

7. The tramway so far as it is proposed to be made in the following respective streets (that is to say) :—

Leicester Road
Leicester Street and
Wilfred Street

shall not be constructed unless and until the carriageway of those streets respectively shall have been so widened that for a distance of thirty feet or upwards a space of not less than nine feet six inches shall intervene between the outside of the footpath on either side of the road and the nearest rail of the tramway.

Time for completion of tramway.

8. If the tramway be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for constructing the same or otherwise in relation thereto shall cease except as to so much of the tramway as is then completed.

Attachment of brackets to walls

9. The Corporation may with the consent of the owner of any wall bridge building or other erection attach to that wall

bridge building or erection such brackets wires and apparatus as may be required for the working by mechanical power of any of the tramways of the Corporation :

A.D. 1903.
—
bridges
buildings &c.

Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :
- (2) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the court of summary jurisdiction shall have the same powers as under paragraph (1) of this proviso :
- (3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

10. In the event of the tramway being worked by electricity the provisions of section 11 (For protection of Post Office telegraph lines) of the Act of 1902 shall apply and have effect as if that section had formed part of this Act.

Application of
provisions of
Act of 1902 for
protection of
Post Office
telegraph lines.

11.—(1) It shall be lawful for the Corporation to construct in lieu of the junction authorised to be made by section 12 (1) of the Act of 1902 a junction between the existing tramways in Bury Old Road and the tramway by this Act authorised at such points as may be agreed on between the Corporation and the Manchester Corporation or in default of agreement as shall be settled by the Board of Trade.

Junction
between
tramway
and existing
tramways in
Bury Old
Road.

A.D. 1903.

(2) The Manchester Corporation shall afford the Corporation all reasonable facilities for the exercise of the before-mentioned powers.

Confirming agreement with Manchester Corporation.

12. The agreement dated the fourth day of May one thousand nine hundred and three between the lord mayor aldermen and citizens of the city of Manchester of the one part and the Corporation of the other part of which a copy is set out in the Second Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Application of section 22 of Act of 1899 to tramways outside borough.

13. Section 22 (Power to lay down double or interlacing lines in place of single lines and vice versa) of the Act of 1899 shall extend and apply to any tramways outside the borough which are owned worked or leased by the Corporation as if such tramways were tramways which the Corporation had laid down or were authorised to lay down but so that the powers of the said section may be exercised in relation to any such tramways within their district by or with the consent of the local authority of such district only and the powers of the said section may be exercised in relation to any of such tramways within their district by the local authority of such district.

For protection of Lancashire and Yorkshire Railway Company.

14. Where any tramways of the Corporation pass in front of the entrances to any passenger or goods station of the Lancashire and Yorkshire Railway Company the Corporation shall not in exercising the powers contained in the section of this Act of which the marginal note is "Application of section 22 of Act of 1899 to tramways outside borough" except for the purpose of constructing a continuous double line with spaces of not less than nine feet six inches between the outside of the footpath on each side of the road and the nearest rail of the tramway make any double or interlacing line or additional crossing passing-place siding junction turnout or other work for or in connexion therewith for the distance thereon extending in front of the said entrances to such stations and for a length of ten yards at each end of such distance without the consent of the said company and without such consent no carriage used on the said tramways shall be stopped or permitted to be stopped within such distance and lengths except in front of the entrances to passenger stations and then only for so long as shall be necessary for the purposes of discharging and taking up passengers.

Power to certain local authorities to grant leases of tramways.

15. It shall be lawful for the local authority of any district adjacent to the borough authorised to construct tramways which can be worked in connexion with the Corporation tramways to

grant to the Corporation a lease or leases of such tramways or any part thereof for any period not exceeding forty-two years Provided that the terms and conditions of such lease or leases shall be subject to the approval of the Board of Trade. A.D. 1903.

PART III.

STREET WORKS.

16. Subject to the provisions of this Act the Corporation in the lines and situations and according to the levels shown on the deposited plans and sections and upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference may if they think fit wholly in the borough make and maintain the following street works (that is to say) :— Power to execute street works.

Work No. 1 A new road to connect Bury Old Road with Leicester Road commencing in and by a junction with Bury Old Road opposite the junction of Bury Old Road and Middleton Road and terminating in Leicester Road at a point about 7·5 chains south-west of the junction of Leicester Road and Upper Park Road :

Work No. 2 Widenings of Leicester Road—

- (i) On the north-west side commencing at the termination of the herein-before described Work No. 1 and terminating in Leicester Road at its junction with Broom Lane ;
- (ii) On the south-east side commencing in Leicester Road at a point 4·4 chains or thereabouts north-east of the junction of Leicester Road and Tetlow Lane and terminating at the said junction :

Work No. 3 Widenings of Leicester Street—

- (i) On the western side between Broom Lane and Devonshire Street ;
- (ii) On the eastern side—
 - (A) Between a point 6·3 chains or thereabouts south of the junction of Northumberland Street with Leicester Street and the junction of Symons Street with Leicester Street ;
 - (B) Between the junction of Norton Street with Leicester Street and the junction of Devonshire Street with Leicester Street :

Work No. 4 Widenings of Wilfred Street—

- (i) On the western side between the junction of Devonshire Street with Wilfred Street and the junction of Great Cheetham Street East with Wilfred Street ;

A.D. 1903.

(ii) On the eastern side between the junction of Devonshire Street with Wilfred Street and the junction of Bond Street with Wilfred Street :

Work No. 5 A widening of Great Cheetham Street East on the north-western side between the junction therewith of Wilfred Street and the junction of Tully Street with Great Cheetham Street East.

In connexion with the said Work No. 5 the Corporation may alter the position of so much of the authorised tramway in Great Cheetham Street East as is situate between Tully Street and a point 1 furlong 1·5 chains or thereabouts south-westward thereof.

Power of deviation.

17. In constructing the said street works the Corporation may deviate from the centre line shown on the deposited plans to the extent of the limits of deviation marked thereon and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet.

PART IV.

GENERAL PROVISIONS COMMON TO TRAMWAY AND STREET WORKS.

Power to make general works.

18. Subject to the provisions of this Act the Corporation may within the limits of deviation shown on the deposited plans make and maintain all such approaches retaining walls piers abutments embankments girders cantilevers bridges arches sewers drains goits culverts excavations and other works and conveniences connected with the tramway and street works as they may deem necessary.

Certain sections as to works of Acts of 1891 1899 and 1902 incorporated.

19. The following sections of the former Acts (that is to say) :—

Of the Act of 1891—

Section 21 (Power to alter pipes &c.); and

Section 22 (Streets disused vested in Corporation);

Of the Act of 1899—

Section 53 (For protection of Manchester Corporation);

Section 55 (Junctions between existing and new streets);

Of the Act of 1902—

Section 17 (Temporary stoppage of streets);

shall so far as the same are applicable and are not inconsistent with the provisions of this Act extend and apply mutatis mutandis to and in relation to the constructing and maintaining of the tramway and street works by this Act authorised.

The following provision shall be added to and form part of the said section 53 of the Act of 1899 (that is to say) :— A.D. 1903.

If any difference arises between the Corporation and the Manchester Corporation with respect to anything hereinbefore in this section contained such difference shall unless otherwise agreed be determined by an arbitrator to be appointed by the Board of Trade on the application of either party after notice in writing to the other.

PART V.

LANDS.

20. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference which they require for the purposes of the street works by this Act authorised or (in the case of constructing any new streets or the widening or improving of any existing street) for the providing of space for the erection of buildings adjoining or near to any such street and also the lands so delineated and described and set forth in the Third Schedule to this Act. Power to take lands.

21. The Corporation may for the purpose of providing space for improving any existing street or for the erecting of buildings in adjoining or adjacent to such street acquire lands by agreement and the provisions of section 340 (Power for Corporation to purchase lands for purposes of Act) of the Act of 1862 shall extend to and in relation to the lands so acquired. Power to acquire lands by agreement for street improvements.

22. The Corporation may with the consent of the Local Government Board appropriate and use for any of the purposes of this Act any lands for the time being vested in them as a municipal or urban sanitary authority and not required for the purposes for which the same were acquired but nothing in this section shall authorise the Corporation to create or permit any nuisance. Corporation may use their own lands for purposes of Act.

If the Corporation appropriate for the purposes of this Act any lands so vested in them they shall debit the account for which the said lands are appropriated with a reasonable sum by way of purchase money or rent for the said lands and shall carry that sum to the credit of the fund out of which the said lands were acquired.

A.D. 1903.

Certain sections as to lands of Acts of 1891 and 1899 incorporated.

23. The following sections of the former Acts (that is to say) :—

Of the Act of 1891—

- Section 23 (Elevation of buildings erected on front land to be subject to approval of Corporation);
- Section 26 (Correction of errors omissions &c.);
- Section 27 (Limitation of time for compulsory purchase of lands);
- Section 28 (Power to acquire additional lands by agreement);
- Section 29 (Consideration for such acquisition);
- Section 30 (Power to grant easements &c. by agreement);
- Section 33 (Corporation empowered or may be required to underpin or strengthen houses near any of the street works);
- Section 34 (Power to retain sell &c. lands);
- Section 36 (As to consent of Local Government Board to sale &c. of lands);

Of the Act of 1899—

- Section 57 (Owners may be required to sell parts only of certain lands and buildings);

so far as the same are applicable and not inconsistent with this Act shall extend and apply mutatis mutandis to and in relation to the acquisition use and disposal of the lands by this Act authorised to be acquired by the Corporation and shall be incorporated with and form part of this Act :

Provided that in construing section 57 of the Act of 1899 for the purposes of this Act the Fourth Schedule of this Act shall be substituted for the Fifth Schedule of the Act of 1899.

Restrictions on displacing persons of labouring class.

24.—(1) The Corporation shall not under the powers by this Act granted purchase or acquire in any city borough or other urban district and elsewhere than in any city borough or urban district any parish ten or more houses which on the fifteenth day of December last were or have been since that day or shall hereafter be occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until—

- (A) They shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the fifteenth day of December last or for such number of persons as the Local Government Board shall after inquiry

deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case ; and

(B) Shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) Subsections (2) to (8) both inclusive of section 26 (Restrictions on displacing persons of labouring class) of the Act of 1902 shall be deemed to be incorporated in and form part of this section and shall apply and have effect accordingly.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

25. When the Corporation have acquired the lands shown on the deposited plans abutting upon the east side of Kay Street and shall have completed the improvement shown on the deposited plans between Tully Street and the junction of Brighton Street with Wilfred Street they may stop up Kay Street and appropriate the site and soil thereof and all rights in and over the said street shall thereupon be extinguished.

Stopping up
Kay Street.

PART VI.

FINANCE.

26. The Corporation may from time to time borrow at interest on the following securities such sums as shall be requisite for the following purposes (that is to say) :—

Power to
Corporation
to borrow.

For paying the costs of this Act as herein-after defined on the security of the borough fund and borough rate the sum necessary for the purpose ;

For and in relation to the construction of the tramway on the security of the tramways revenue and the borough fund and borough rate eighteen thousand pounds ;

A.D. 1903.

For and in relation to street works on the security of the district fund and general district rate forty-one thousand pounds ;

For the purpose of constructing adapting and equipping the junction between the existing tramways in Bury Old Road and the tramway by this Act authorised such sum as the Board of Trade may sanction.

Incorporation of sections of Acts of 1862 1897 and 1899.

27. The following sections of the former Acts (that is to say):—

Of the Act of 1862—

Section 397 (Register of mortgages to be kept and to be open to inspection);

Section 398 (Registers of transfers to be kept) ;

Of the Act of 1897—

Section 44 (As to repayment &c.) ;

Section 45 (As to sinking fund) ;

Section 46 (Power to re-borrow) ;

Section 47 (Application of moneys borrowed) ;

Section 48 (Receiver) ;

Section 50 (Annual return to Local Government Board with respect to sinking funds) ;

Section 51 (Corporation not to regard trusts) ;

Of the Act of 1899—

Section 86 (Application of tramway revenue) ;

Section 87 (Proceeds of sale of surplus lands) ;

shall extend and apply mutatis mutandis to and in relation to moneys borrowed and re-borrowed under the powers of this Act Provided that in construing section 44 of the Act of 1897 for the purposes of this Act the prescribed periods for the repayment of moneys so borrowed shall be as follows (that is to say):—

For the purpose of paying the costs of this Act any period not exceeding five years ;

For the construction of the tramway any period or periods not exceeding thirty years ;

For the tramway work in connexion with the junction between the existing tramways in Bury Old Road and the tramway by this Act authorised such period as the Board of Trade may sanction ;

For street works purposes including purchase of lands any period or periods not exceeding fifty years ;

The first payment by instalments or to a sinking fund shall be made within twelve months after the date of the borrowing of the money in respect of which such payment

is to be made Provided that it shall not be obligatory on the Corporation to commence the repayment of any money borrowed for tramway purposes under this Act until the expiration of one year from the date of the borrowing of such money. A.D. 1903.

28. Before applying the tramway revenue in making any payment to the borough fund as prescribed by section 86 of the Act of 1899 the Corporation shall pay the interest on moneys borrowed by them under and provide the requisite instalments and sinking fund prescribed by this Act on loans for tramway purposes and the said section 86 shall be read and construed accordingly. As to application of tramway revenue.

29. The provisions of section 32 of the Act of 1902 (Certain provisions applicable to all sinking funds of Corporation) and section 33 (Scheme for fixing equated periods) shall be deemed to extend and apply to the purposes of this Act. Applying certain provisions of Act of 1902 as to sinking fund and fixing of equated periods.

30. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys) shall be paid as follows (that is to say):— Expenses of executing Act.

(A) For and in relation to tramways out of the tramway revenue and subject thereto out of the borough fund and borough rate;

(B) For and in relation to street works and street improvements out of the district fund and general district rate;

(C) For and in relation to all other purposes out of the borough fund and borough rate:

Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Corporation may apportion the same between those accounts in such manner as they deem equitable.

PART VII.

MISCELLANEOUS.

31. The urban district council of Prestwich and the urban district council of Whitefield respectively may transfer to the Corporation all or some of their powers duties and liabilities under the Prestwich Electric Lighting Order 1900 and the Whitefield Electric Lighting Order 1900 respectively and any works constructed by the said district councils respectively under the said Transfer to Corporation of powers of district councils of Prestwich and Whitefield as to

A.D. 1903. Orders and the Corporation may on completion of such transfer exercise such powers as if the Corporation had been referred to in the said Orders respectively instead of the said respective district councils :

electric
lighting.

Provided that the terms of any such transfer shall be approved by the Board of Trade and provided also that nothing herein contained shall authorise the urban district council of Prestwich to transfer to the Corporation any of the powers duties and liabilities of the said district council under the Prestwich Electric Lighting Order 1900 in respect of that part of their area in the township and parish of Prestwich added to the city of Manchester by the Manchester Corporation Act 1903.

Rails on
streets upon
New Barns
Estate.

32.—(1) It shall be lawful for the owner or owners for the time being of the New Barns Estate (including any person having the powers of a tenant for life under the Settled Lands Acts 1882 to 1890) and his and their assigns (herein-after referred to as "the owner ") notwithstanding anything contained in the Salford Improvement Acts or in the Public Health Acts to lay and maintain in along or across any streets already laid out or hereafter to be laid out on the New Barns Estate any line or lines of rails communicating with the dock railway lines of the Manchester Ship Canal Company and to use or allow to be used such line or lines of rails for the conveyance of waggons or carriages drawn by any description of motive power.

(2) Every such line shall be laid and maintained subject to the following conditions namely :—

(A) The only rails to be laid under the powers of this section in Langworthy Road shall be a double line of rails crossing such road at the extreme southerly end thereof :

(B) All rails laid under the powers of this section shall be so laid and maintained as that the upper surfaces thereof shall be upon a level with the surface of the street :

(c) Before any rails are laid down under the powers of this section in any street the owner shall submit to the Corporation a plan showing the proposed position of such rails with regard to the street :

(D) The Corporation shall within twenty-eight days after the receipt of such plan by them notify in writing to the owner their consent or state their objection to the laying of the rails in the manner shown on such plan or the conditions on which they will consent to the laying of such rails but in case of difference between the owner and the Corporation such difference shall be referred to arbitration :

(E) If within the said period of twenty-eight days the Corporation shall not have given such notice in writing they shall be deemed to have consented to the laying of the rails in the manner shown on such plan : A.D. 1903.

(F) No rails shall be laid under the powers of this section before the expiration of the said period of twenty-eight days unless the Corporation shall have notified their consent as aforesaid nor shall any rails be laid after the expiration of the said period of twenty-eight days in respect of which the Corporation shall have stated as aforesaid any objections or conditions until any difference between the owner and the Corporation as to such objections or conditions shall have been determined by arbitration as aforesaid :

(G) No waggons or carriages shall be allowed to remain at rest in any street for more than five minutes at one time :

(H) No line of rails shall without the consent of the Corporation be laid under the powers of this section in any street except for the purpose of crossing such street :

(I) No line of rails in any street laid down under the powers of this section shall be used between sunset and sunrise unless the same shall be lighted as agreed upon between the engineer of the Corporation and the engineer of the owner and in case they fail to agree then as shall be settled by arbitration and such lighting shall be at the expense of the owner :

(J) The owner shall at all times in every street pave the spaces between all rails and for a distance of five yards on each side of every line of rails and maintain and keep such paving in good repair and condition to the satisfaction of the Corporation.

The laying maintenance and use of any line of rails under the powers of this section shall also be subject to such further reasonable conditions (if any) as the Corporation may think necessary for securing the safety of the public and the use of such streets for other traffic Provided that if any dispute or difference shall arise as to whether any such further condition is or is not reasonable the same shall be referred to arbitration.

33. The following sections of the Act of 1899 (that is to say) :— Certain sections of Act of 1899 incorporated.

Section 92 (Information by whom to be laid) ;

Section 93 (Authentication and service of notices &c.) ;

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- Section 94 (General provisions as to byelaws);
- Section 95 (As to appeal);
- Section 96 (Compensation how to be determined);
- Section 97 (Compensation may be in land &c.);
- Section 98 (Damages and charges in case of dispute to be settled by justices);
- Section 100 (Penalties to be paid over to the treasurer &c.);
- Section 101 (Saving for indictments &c.);
- Section 102 (Judges &c. not disqualified);
- Section 103 (Persons acting in execution of Act not to be personally liable);
- Section 104 (Powers of Act cumulative);
- Section 105 (Inquiries by Local Government Board);
- Section 106 (Audit of accounts);

shall be deemed to be incorporated with this Act as if the said sections had been re-enacted in this Act.

Recovery of penalties.

34. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Crown rights.

35. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Saving rights of duchy of Lancaster.

36. Nothing contained in this Act shall extend or operate to authorise the Corporation to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His duchy of Lancaster without the consent in writing of the chancellor for the time being of the said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy.

Expenses of Act.

37. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or the House of Commons shall be paid by the Corporation out of the borough fund or moneys to be borrowed for the purpose under the provisions of this Act.

The SCHEDULES referred to in the foregoing Act.

A.D. 1903.

THE FIRST SCHEDULE.

16 Vict. cap. xxxii. -	-	The Salford Extension and Improvement Act 1853.
20 & 21 Vict. cap. cxxxii.	-	The Salford Borough Act 1857.
25 & 26 Vict. cap. ccv.	-	The Salford Improvement Act 1862.
30 Vict. cap. lviii. -	-	The Salford Improvement Act 1867.
33 & 34 Vict. cap. cxxix.	-	The Salford Improvement Act 1870.
34 & 35 Vict. cap. cx. -	-	The Salford Improvement Act 1871.
38 & 39 Vict. cap. ci. -	-	The Salford Tramways and Improvement Act 1875.
45 & 46 Vict. cap. xevii.	-	Provisional Order relating to the Borough of Salford confirmed by the Local Government Board's Provisional Order Confirmation (No. 8) Act 1882.
48 & 49 Vict. cap. cii.	-	The Salford Corporation Tramways Order 1885 confirmed by the Tramways Orders Confirmation (No. 2) Act 1885.
49 & 50 Vict. (Sess. 2) cap. xxv.	-	The Salford Corporation Act 1886.
53 & 54 Vict. cap. clxxxvii. -	-	The Salford Electric Lighting Order 1890 confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1890.
54 Vict. cap. xiv. -	-	The Salford Corporation Act 1891.
54 & 55 Vict. cap. cexi.	-	Provisional Order relating to the Borough of Salford confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1891.
54 & 55 Vict. cap. ccxiii.	-	Provisional Order relating to the Borough of Salford confirmed by the Local Government Board's Provisional Orders Confirmation (Housing of Working Classes) Act 1891.
55 & 56 Vict. cap. ccxxiii.	-	Provisional Order relating to the Borough of Salford confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892.
56 & 57 Vict. cap. xxxi.	-	The Salford Improvement Act 1893.
60 & 61 Vict. cap. cclv.	-	The Salford Corporation Act 1897.
61 & 62 Vict. cap. ccxii.	-	Provisional Order relating to the Borough of Salford confirmed by the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1898.

A.D. 1903.	62 & 63 Vict. cap. ccxliv.	-	The Salford Corporation Act 1899.
—	63 & 64 Vict. cap. ccxx.	-	The Salford Corporation Act 1900.
—	1 Edw. 7. cap. ccxxii.	-	The Salford Corporation Act 1901.
—	2 Edw. 7. cap. cxlviii.	-	The Salford Corporation Act 1902.

THE SECOND SCHEDULE.

ARTICLES OF AGREEMENT made the fourth day of May one thousand nine hundred and three between THE LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF MANCHESTER (herein-after called “the Manchester Corporation”) of the one part and THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF SALFORD in the County of Lancaster (herein-after called “the Salford Corporation”) of the other part.

WHEREAS by virtue of divers Acts of Parliament relating to the Manchester Corporation tramways the Manchester Corporation have constructed and electrically equipped or are authorised to construct and electrically equip (inter alia) the tramways described in the First Schedule hereto which tramways are herein-after referred to as “the Manchester tramways” :

And whereas by virtue of divers Acts of Parliament relating to the Salford Corporation tramways the Salford Corporation have constructed and electrically equipped or are authorised to construct and electrically equip the tramways described in the Second Schedule hereto which tramways are herein-after referred to as “the Salford tramways” :

And whereas by virtue of three agreements dated respectively the 16th day of August 1900 the 27th day of January 1903 and the 28th day of January 1903 and respectively made between the urban district council of Stretford in the county of Lancaster (herein-after called “the Stretford Council”) of the one part and the Manchester Corporation of the other part (which agreements are herein-after referred to as “the Stretford agreements”) the Manchester Corporation have acquired temporary running powers over (inter alia) the tramways in the urban district of Stretford which are described in the Third Schedule hereto with a right to a lease of such tramways for 21 years at the expiration of such temporary running powers and the said tramways described in the said Third Schedule are herein-after referred to as “the Stretford tramways” :

And whereas by an agreement dated the 7th day of August 1902 and made between the urban district council of Prestwich in the county of Lancaster (herein-after called “the Prestwich Council”) of the one part and the Salford Corporation of the other part (which agreement is herein-after referred to as “the Prestwich agreement”) the Prestwich Council have agreed to lease to the Salford Corporation for a term of 21 years (inter alia) the tramways described in the Fourth Schedule hereto (which tramways are herein-after referred to as “the Prestwich tramways”) :

And whereas for the purpose of giving effect to section 16 of the Manchester Corporation Tramways Act 1902 and sections 12 and 27 of the Salford Corporation Act 1902 the Manchester Corporation and the Salford Corporation have agreed to enter into and execute these presents :

Now it is hereby mutually and reciprocally covenanted and declared between and by the Manchester Corporation and the Salford Corporation that the following provisions and stipulations shall be binding upon and be carried out by the Manchester Corporation and the Salford Corporation respectively (that is to say) :—

1. The Manchester Corporation will (if and so far as not already done) forthwith reconstruct or construct and electrically equip the Manchester tramways and the Stretford tramways and the Manchester Corporation will keep in repair and maintain the Manchester tramways and their equipment and will under the provisions of the Stretford agreements see that the Stretford tramways (after reconstruction) and their equipment are kept in repair and maintained by the Stretford Council or otherwise.

2. The Salford Corporation will (if and so far as not already done) forthwith reconstruct or construct and electrically equip the Salford tramways and the Prestwich tramways and the Salford Corporation will keep in repair and maintain the Salford tramways and their equipment and will under the provisions of the Prestwich agreement see that the Prestwich tramways (after construction) and their equipment are kept in repair and maintained by the Prestwich Council or otherwise.

3. The Manchester Corporation hereby grant to the Salford Corporation the right of user of the Manchester tramways described in Part I. of the First Schedule hereto by means of tramcars propelled by electric traction for the purpose of carrying passengers only or passengers with their personal luggage (not exceeding twenty-eight pounds in weight with every such passenger) and of demanding and taking tolls and charges from passengers therefor and also the right of user of the Manchester tramways described in Part I. of the said First Schedule for the purpose of carrying small parcels not exceeding fifty-six pounds in weight in or on passenger tramcars and of demanding and taking tolls and charges therefor and also the right of user of and of demanding and taking tolls and charges upon the Manchester tramways described in Parts II. and III. of the First Schedule hereto and also (so far as the Manchester Corporation can grant the same) the right of user of and of demanding and taking tolls and charges upon the Stretford tramways subject nevertheless and reserving to the Manchester Corporation the right of user of and of demanding and taking tolls and charges upon the portions of the Manchester tramways in Deansgate Victoria Street Great Ducie Street and Bury New Road (between Liverpool Road and Waterloo Road) and in Middleton Road and Bury Old Road and also of and upon the Stretford tramways To hold the said rights hereby granted unto the Salford Corporation for the terms at the rents and subject to the provisions herein-after specified Provided always that if it shall be found necessary to obtain the consent of the Stretford Council to the exercise by the Salford Corporation of the said rights over the Stretford tramways the Manchester Corporation will use their best endeavours to obtain such consent.

A. D. 1903.

4. In respect of the user by the Salford Corporation of the portions of the Manchester tramways which are described in Part I. of the First Schedule hereto the Salford Corporation will pay to the Manchester Corporation who will accept as rent thereof—

First A fixed annual sum to be ascertained after the rate of one thousand three hundred and seventy-three pounds one shilling and sixpence for every mile of single track of such tramways and so in proportion for any less distance than a mile ;

Secondly The net profits which shall be earned by the Salford Corporation upon the Manchester tramways described in Part I. of the said First Schedule by means of any Salford cars which may be run over or along the whole or part of the Manchester Tramways in Bury New Road Great Ducie Street and Victoria Street (to its junction with Victoria Bridge Street) or vice versâ and which cars shall have been or shall be conveyed from or to Leicester Road or Great Cheetham Street East Salford ; and

Thirdly The net profits which shall be earned by the Salford Corporation upon the Manchester tramways described in Part I. of the said First Schedule by means of the carriage thereon of small parcels.

5. In respect of the user by the Salford Corporation of the Manchester tramways in Middleton Road the Salford Corporation will pay to the Manchester Corporation who will accept as rent thereof—

First A sum of money per annum corresponding with the items first and thirdly described in paragraph vi. of the Second Schedule of the Prestwich agreement and to be ascertained with reference to the capital outlay of the Manchester Corporation and the gross takings of the Salford Corporation upon the Manchester tramways in Middleton Road in the same manner (*mutatis mutandis*) as is provided by the Prestwich agreement for ascertaining the rental of the tramways in Middleton Road Prestwich and with the same rights as by the Prestwich agreement are vested in the Prestwich Council for verifying the basis of rental and otherwise ; and

Secondly A proportionate amount each year of the cost to be incurred by the Manchester Corporation in maintaining the Manchester tramways in Middleton Road such proportionate amount to be from time to time settled by the two managers (or if they differ by a referee to be from time to time appointed by the two mayors) on the basis of the respective traffic on such tramways of the Salford Corporation and the Manchester Corporation respectively.

6. In respect of the user by the Salford Corporation of the Manchester tramways in Bury Old Road and of the Stretford tramways the Salford Corporation will pay to the Manchester Corporation who will accept as rent thereof the net profits which shall be earned by the Salford Corporation upon such tramways respectively.

7. The Salford Corporation hereby grant to the Manchester Corporation the right of user of and of demanding and taking tolls and charges upon the Salford tramways and also (so far as the Salford Corporation can grant the same) of and upon the Prestwich tramways subject nevertheless and reserving to the Salford Corporation the right of user of and of demanding and taking

tolls and charges upon the Salford tramways and the Prestwich tramways To hold the said rights hereby granted unto the Manchester Corporation for the terms at the rents and subject to the provisions herein-after specified Provided always that if it shall be found necessary to obtain any further consent of the Prestwich Council than is contained in the Prestwich agreement to the exercise by the Manchester Corporation of the said rights over the Prestwich tramways the Salford Corporation will use their best endeavours to obtain such further consent.

8. The Manchester Corporation will pay to the Salford Corporation who will accept as rent in respect of the user by the Manchester Corporation of the Salford tramways and the Prestwich tramways respectively the net profits which shall be earned by the Manchester Corporation upon the Salford tramways and the Prestwich tramways respectively.

9. The rentals provided for by this agreement do not include any charges in respect of the supply of electric current for operating the services on the several tramways herein referred to and for lighting the tramcars on such tramways and the following provisions in relation to such supply and the payments therefor shall have effect and be binding upon the Manchester Corporation and the Salford Corporation respectively namely The said electric current shall be supplied—

As to the Manchester tramways by the Manchester Corporation ;

As to the Stretford tramways either by the Manchester Corporation or by the Stretford Council in accordance with the Stretford agreements; and

As to the Salford tramways and the Prestwich tramways by the Salford Corporation.

Such electric current shall be charged for on the basis of the actual consumption per car mile which consumption shall be from time to time determined and agreed by and between the two managers or (in case of their differing) by a referee to be from time to time appointed by the two mayors and for this purpose the two managers or any such referee shall be empowered to require any meter or apparatus to be provided and maintained within any tramcar or otherwise The electric current to be so consumed shall be paid for in manner following (that is to say) :—

- (1) The Salford Corporation will make payments to the Manchester Corporation for electric current to be supplied to the Salford cars upon the Manchester tramways at the rate per Board of Trade unit which shall be from time to time payable by the Manchester Tramways Committee to the Manchester Electricity Committee :
- (2) The Salford Corporation will make payments to the Manchester Corporation (who will if and so far as may be necessary account to the Stretford Council) for electric current to be supplied to the Salford cars upon the Stretford tramways at the rate per Board of Trade unit which shall be from time to time payable by the Manchester Tramways Committee either to the Manchester Electricity Committee or to the Stretford Council for electric current supplied to the Manchester cars upon the Stretford tramways :
- (3) The Manchester Corporation will make payments to the Salford Corporation for the electric current to be supplied to the Manchester

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cars upon the Salford tramways at the rate per Board of Trade unit which shall be from time to time payable by the Salford tramways Committee to the Salford Electricity Committee :

- (4) The Manchester Corporation will make payments to the Salford Corporation (who will account to the proper authority) for the electric current to be supplied to the Manchester cars upon the Prestwich tramways at the rate per Board of Trade unit which shall be from time to time payable by the Salford Corporation for electric current supplied to the Salford cars upon the Prestwich tramways.

10. The Manchester Corporation will use their best endeavours to obtain a lease or leases for a term or terms of years which shall expire at the same time as the running powers and lease provided for by the Stretford agreements of the tramways in Trafford Park with the right to grant running powers thereover to the Salford Corporation and also authority to connect such tramways (in this agreement called "the Trafford Park tramways") with the Stretford tramways and in the event of such endeavours being successful the Trafford Park tramways shall be deemed to form part of the Stretford tramways under and for the purposes of this agreement as from and after the vesting of any such lease and authority in the Manchester Corporation and the Manchester Corporation will forthwith thereafter connect the Trafford Park tramways with the Stretford tramways and will permit the Salford Corporation (in common with the Manchester Corporation) to have the same rights of user of and taking tolls and charges upon the Trafford Park tramways subject nevertheless to the same rents charges and conditions (*mutatis mutandis*) as under this agreement appertain to the Stretford tramways. The Salford Corporation will not negotiate for or (except as herein provided for) seek to acquire any rights in or over the Trafford Park tramways.

11. If at any time or times during the subsistence of this agreement the Salford Corporation shall exercise the statutory right given by section 43 of the Tramways Act 1870 to purchase the Manchester tramways in Bury Old Road Salford or any part or parts of them the tramways or part of tramways so purchased shall thereafter during the continuance of this agreement be deemed to form part of the Salford tramways and the Salford Corporation will permit the Manchester Corporation (in common with the Salford Corporation) to have the same rights of user thereof and taking tolls and charges thereupon subject nevertheless to the same rents charges and conditions (*mutatis mutandis*) as under this agreement appertain to the Salford Tramways.

12. All rentals of tramway rights and charges for electric current under this agreement shall become payable quarterly on the 25th day of March the 24th day of June the 29th day of September and the 24th day of December in every year.

13. The Salford Corporation as respects the Manchester tramways and the Stretford tramways and the Manchester Corporation as respects the Salford tramways and the Prestwich tramways will respectively observe and perform and keep the other of them indemnified against all enactments byelaws and regulations now subsisting or which may be hereafter lawfully made and which ought to be observed and performed upon or in relation to

the exercise upon such tramways respectively of any rights hereby granted and will if desired from time to time concur in the making of proper regulations for preventing nuisances or offences in or upon the tramcars or tramways and for regulating the travelling in or upon the tramcars and will enforce the due observance of such regulations. A.D. 1903.

14. The rights hereby granted shall not be assigned sublet or parted with by either the Manchester Corporation or the Salford Corporation without the consent of the other of them.

15. Nothing herein contained shall take away or abridge any power to open and break up any road or street along or across which any tramway is or shall be laid but in the exercise of such power as little inconvenience as possible shall be occasioned to the use of such tramway and when necessary substituted or diverted tramways shall and may be temporarily provided. Such power may be exercised without liability to compensate for stopping or delaying tramway traffic.

16. The tolls and charges to be demanded and taken from the public by the Manchester Corporation and the Salford Corporation respectively for the use of their respective tramcars plying upon any one or part of one and the same length of the several tramways described in the schedules hereto or to which this agreement shall for the time being apply shall be as far as practicable uniform and (within the limits prescribed by the several Acts of Parliament which authorise the construction and maintenance of such tramways) the said tolls and charges shall be from time to time fixed and settled by the two managers or if they disagree by a referee to be from time to time nominated by the two mayors.

17. This agreement is entered into in fulfilment of the directions and in pursuance of the powers contained in section 16 of the Manchester Corporation Tramways Act 1902 and in sections 12 and 27 of the Salford Corporation Act 1902 and accordingly (except as may be hereafter expressly agreed between the Manchester Corporation and the Salford Corporation) this agreement shall during its subsistence be deemed to fully provide for the interchange of traffic stipulated for by those Acts and each of them the Manchester Corporation and the Salford Corporation hereby expressly covenant and declare with and to the other of them that the Manchester Corporation and the Salford Corporation respectively shall not nor will hereafter during the subsistence of this agreement by application to Parliament or to the Board of Trade or otherwise seek or obtain without the consent under seal of the other of them any interchange of traffic or running powers over the tramways for the time being belonging or leased to or worked by the other of them beyond the interchange of traffic and rights herein provided for and that this stipulation shall be deemed of the essence of this agreement.

18. In this agreement the following expressions have the meanings here assigned to them namely :—

“The two mayors” means the lord mayor for the time being of the city of Manchester and the mayor for the time being of the county borough of Salford ;

“The two managers” means Mr. John Moffat McElroy the general manager of the Manchester Corporation Tramways or other the general manager for the time being of those tramways and Mr. Ernest

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Hatton the general manager of the Salford Corporation tramways or other the general manager for the time being of those tramways ;

“ Net profits ” means such a sum or sums as shall be certified by the two managers or if at any time or times they fail to agree by a referee or umpire to be from time to time nominated by the two mayors ;

“ Victoria Street ” includes Hunts Bank.

19. Any reference under this agreement to the two managers or to a referee to be nominated by the two mayors shall be deemed a submission to arbitration under the Arbitration Act 1889 or any statutory modification thereof.

20. This agreement and the grants herein contained shall commence forthwith and shall continue in operation for the periods following (that is to say) :—

- (1) As to the portions of the Manchester tramways which are described in Part I. of the First Schedule hereto during 21 years from the date hereof ;
- (2) As to the Manchester Tramways in Middleton Road as to so much of the Manchester Tramways in Bury Old Road as is situate in the city of Manchester as to the Salford Tramways (if any) in Bury Old Road and as to the Prestwich Tramways during the continuance of the lease provided for by the Prestwich agreement ;
- (3) As to so much of the Manchester tramways in Bury Old Road as is situate in the county borough of Salford until the expiration of the lease provided for by the Prestwich agreement or until the exercise by the Salford Corporation from time to time of their right of purchase under section 43 of the Tramways Act 1870 whichever first happens ; and
- (4) As to the Salford tramways in Trafford Road and as to the Stretford tramways during the subsistence of the running powers and lease provided for by the Stretford agreements :

Provided always that no rental shall be payable in respect of any of the said tramways unless and until the same are constructed and electrically equipped and supplied with electric current.

In witness whereof the Manchester Corporation and the Salford Corporation have hereunto affixed their respective common seals the day and year first before written.

THE FIRST SCHEDULE herein-before referred to.

(Containing a description of the Manchester Tramways.)

PART I.

1. The tramways in Deansgate between Liverpool Road and Victoria Bridge Street.

2. The tramways in Victoria Street Great Ducie Street and Bury New Road between Victoria Bridge Street and the boundary between Manchester and Salford at the Grove Inn.

3. A double line of tramways between Victoria Street and the centre of the Palatine Bridge to form a junction between the tramway of the Manchester Corporation in Victoria Street and the tramway of the Salford Corporation on the Salford side of the said bridge. A.D. 1903.

4. The authorised tramways from a point near the junction of Victoria Street and Deansgate extending along Victoria Bridge Street to the centre of the Victoria Bridge.

5. The tramways extending from Deansgate along Blackfriars Street to the centre of the Blackfriars Bridge.

6. The tramways extending from Deansgate along King Street West to its junction with Bridge Street.

7. The tramways extending from Deansgate along Bridge Street to the centre of Albert Bridge.

8. The tramways commencing in Deansgate and extending along Quay Street to its junction with Water Street.

9. The tramways commencing in Deansgate and extending along Liverpool Road to its junction with Water Street.

10. The tramways commencing at the junction of Quay Street and Water Street extending along Water Street and terminating at the centre of the Regent Bridge.

PART II.

11. The authorised tramways in Middleton Road between Bury Old Road and the boundary of Manchester and Prestwich.

All which tramways described in Parts I. and II. of this schedule are situate within the city of Manchester.

PART III.

12. The tramways belonging to the Manchester Corporation in Bury Old Road between George Street and the boundary of Salford and Prestwich which tramways are partly in the city of Manchester and partly in the county borough of Salford.

THE SECOND SCHEDULE herein-before referred to.

(Containing a description of the Salford Tramways.)

1. The authorised tramways between the boundary of Salford and Stretford in the centre of the bridge carrying Trafford Road over the Manchester Ship Canal and extending thence along Trafford Road to a point in such road being the most northerly boundary of the dock premises belonging to the Manchester Ship Canal Company in the county borough of Salford.

2. So much (if any) of the tramways in Bury Old Road from the boundary of Manchester and Salford to the boundary of Salford and Prestwich as belongs or shall belong to the Salford Corporation.

Which tramways described in this schedule are situate within the county borough of Salford.

A.D. 1903.

The THIRD SCHEDULE herein-before referred to.

(Containing a description of the Stretford Tramways.)

The double line of tramways constructed and electrically equipped or intended to be constructed and electrically equipped in Trafford Road and extending between Chester Road and the centre of the bridge carrying Trafford Road over the Manchester Ship Canal.

Which tramways described in this schedule are situate in the urban district of Stretford.

The FOURTH SCHEDULE herein-before referred to.

(Containing a description of the Prestwich Tramways.)

1. The authorised tramways in Bury Old Road from the boundary of Salford and Prestwich at or near Singleton Road to St. Margaret's Church.

2. The authorised tramways in Middleton Road from the boundary of Manchester and Prestwich to the Three Arrows Inn.

Which tramways described in this schedule are or will be situate within the urban district of Prestwich.

The common seal of the corporation of the city of Manchester was hereunto affixed in pursuance of an order of the council of the said city in the presence of—

JOHN ROYLE

Lord Mayor.

THOMAS HUDSON

Deputy Town Clerk.

L.S.

The common seal of the corporation of the county borough of Salford was hereunto affixed in pursuance of an order of the council of the said county borough in the presence of—

W. STEPHENS

Mayor.

L. C. EVANS

Town Clerk.

L.S.

THE THIRD SCHEDULE.

A.D 1903.

ADDITIONAL LANDS FOR THE STREET WORKS BY THIS
ACT AUTHORISED.

Certain lands in the parish of Broughton in the borough bounded on the northerly side thereof by Bury Old Road and land belonging or reputed to belong to Abraham Taylor on the westerly side thereof by land belonging or reputed to belong to Robert Miles Stapleton on the southerly side thereof by Upper Park Road and on the easterly side thereof by land and premises known as "Woodleigh" Upper Park Road.

Certain lands in the said parish of Broughton bounded on the northerly side thereof by Upper Park Road on the westerly side thereof by Stanley Road on the southerly side thereof by land belonging or reputed to belong to Henry Arthur Clowes and on the easterly side thereof by Leicester Road.

THE FOURTH SCHEDULE.

PROPERTIES OF WHICH PARTS ONLY MAY BE TAKEN.

Parish.	Numbers on deposited Plans (all Numbers inclusive).
Broughton - - - -	2 to 7 10 to 24 28 30 to 32 36 37 39 to 41 43 to 45 47 to 49 51 to 53 56 58 59 61 62 99 to 114 116.

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